

RODOLFO AMAYA v. BAY CITIES ASPHALT INC.
Case No: CU25-03513

Motion for Approval of PAGA Settlement

TENTATIVE RULING:

The unopposed motion for approval of PAGA settlement is DENIED without prejudice.

The caption in the underlying complaint in this action is for the individual claim of Plaintiff AMAYA and alleges wrongful termination causes of action as well as wage and hour causes of action for Mr. AMAYA. The caption does not reflect that suit was filed in AMAYA's representative capacity and fails to provide that notice to the court or the public. Consistent with this representation, and the civil case cover sheet filed by Plaintiff indicating the matter was not a complex matter, Plaintiff was not charged a complex filing fee.

While the court appreciates that the allegations of the complaint may have provided notice to Defendant of the intent to pursue representative PAGA claims, procedurally the complaint as currently plead is for AMAYA's individual claims alone.

The denial is without prejudice. Plaintiff may file an amended complaint, satisfy complex case filing fees, and re-submit this motion.

STEWART v. SIX FLAGS DISCOVERY KINGDOM, ET AL.
Case No. CU25-06137

Motion for Undertaking

TENTATIVE RULING:

Defendant's motion for undertaking is DENIED.

Defendant has not met its burden of demonstrating that there is a reasonable possibility that it will obtain judgment in the action. (Code Civ. Proc. § 1030(b); *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432.)

Defendant relies only on its defense that the dangerous condition that caused Plaintiff's injury was open and obvious. But, there is an exception to the rule "when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 215, quoting *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447.) "[I]f the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger", it is foreseeable that an obvious danger may cause injury. (*Osborn v. Mission Ready Mix* (1990) 224 Cal.App.3d 104, 121.) And, while the obviousness of a hazard may obviate the duty to warn of its existence, there may still be a duty to remedy the danger. (*Martinez v. Chippewa Enters., Inc.* (2004) 121

Cal.App.4th 1179, 1184; *Donohue v. San Francisco Hous. Auth.* (1993) 16 Cal.App.4th 658, 665; *Osborn, supra*, 224 Cal.App.3d at 119.)

While it is reasonably possible for a jury to conclude that the condition was open and obvious based on the picture taken near the time of the accident (Decl. of Wong, ¶ 3), Defendant presents no evidence to support its conclusion that “there was no reason for Plaintiff to walk on the sloped median divider” (Decl. of Melendez, ¶ 7.) That there was a crosswalk leading from the sidewalk provided by Defendant to the parking lot proves nothing since Plaintiff had already crossed to the parking lot and was traveling to a parking bay in the lot west of the crosswalk. (See, Decl. of Wong, ¶ 3 [authenticating photograph showing the location of the incident].) Plaintiff avers, and Defendant has not refuted, that she was traveling to her vehicle deeper in the lot, where there were no marked pedestrian walkways, during a time when vehicles were exiting the lot, and had to choose between walking on the parking area where cars were exiting and the median. (Decl. of Steward, ¶¶ 14-15.)

CIVIL RIGHTS DEPARTMENT v. AUTOZONERS, LLC

Case No. CU25-10561

Respondent’s Motion for Attorneys’ Fees

TENTATIVE RULING

Respondent AUTOZONERS, LLC moves for an award of attorneys’ fees pursuant to Government Code section 12963.5, subdivision (e)(2) subsequent to this court’s March 6, 2026 order denying Petitioner CIVIL RIGHTS DEPARTMENT’s (“CRD”) petition to compel compliance with an investigative subpoena on the basis that Petitioner effectively filed its petition outside of the one-year statute of limitations on its underlying investigation.

Hon v. Marshall (1997) 53 Cal.App.4th 470 (*Hon*) and *Linsley v. Twentieth Century Fox Film Corp.* (1999) 75 Cal.App.4th 762 (*Linsley*) are the most relevant authority on the question of attorneys’ fee awards under Government Code section 12963.5, subdivision (e)(2).

In *Hon* the plaintiff filed a complaint relevantly including causes of action under the Fair Housing and Employment Act (“FEHA”) alleging that her employer made sexually suggestive and derogatory comments to her and denigrated her Buddhist faith. (*Hon, supra*, 53 Cal.App.4th at p. 473.) However, the plaintiff never filed an administrative complaint prior to bringing those causes of action, losing on summary judgment due to failure to exhaust administrative remedies. (*Id.* at pp. 473-474.) The defendants moved for and received attorneys’ fees under Government Code section 12965, which at the time had at subdivision (b) a provision simply permitting attorneys’ fees to prevailing parties in FEHA actions in the court’s discretion. (*Id.* at p. 475.)

The *Hon* appellate court, called on to answer the question of first impression of whether summary judgment due to a jurisdictional defect creates a “prevailing party,” noted that